

## M2.2 Rules of Evidence – Unfavourable witness RASE

### Learner Instructions

You are prosecuting a contested matter at Ballarat Magistrates' Court where the accused is charged with intentionally cause injury. The prosecution case is that the accused and the victim got into a verbal altercation at a bar and the accused punched the victim 3 times to the face.

You call Bernie KIDD, who is a close friend of the accused. He was present during the alleged incident and has made a written statement to police. In his statement he says that he was at the bar with the accused and he observed a verbal argument between the accused and HORSFALL, the victim in the matter. In his statement to police, KIDD stated that his view was blocked, so whilst he saw the verbal altercation, he did not see who started the fight. During your pre-court conference with KIDD, he confirms that this is his evidence.

During his evidence-in-chief, KIDD begins to describe in detail how he saw the victim HORSFALL walk up to the accused unprovoked and king hit him, knocking him to the ground.

When asked, KIDD agrees that he made a statement to police but denies that it is inconsistent with the evidence he has given in court today.

**Is there any way you can cross-examine KIDD about this new evidence?**

**Learners are required to prepare a written submission (IRAC format preferred).**